

14. 9:00 AM CASE NUMBER: MSC20-00056

CASE NAME: GULINGAN VS SU

***HEARING ON MOTION IN RE: STRIKE PLTFS MEMO OF COSTS FILED 09/11/25 AS PREMATURE
FILED BY: SU, YING ZHONG**

TENTATIVE RULING:

Pursuant to the Notice of Withdrawal filed January 28, 2026, defendants' motion to strike is DROPPED from calendar and the hearing date VACATED.

15. 9:00 AM CASE NUMBER: MSC20-00056

CASE NAME: GULINGAN VS SU

***HEARING ON MOTION IN RE: STRIKE PLTFS MEMO OF COSTS FILED 09/16/25 AS PREMATURE
FILED BY: SU, YING ZHONG**

TENTATIVE RULING:

Pursuant to the Notice of Withdrawal filed January 28, 2026, defendants' motion to strike is DROPPED from calendar and the hearing date VACATED.

16. 9:00 AM CASE NUMBER: MSC21-02266

CASE NAME: WITTENBERG VS ROADS OF HACIENDA HOMES, INC.

**HEARING ON DEMURRER TO: 1ST AMENDED CROSS-COMPLAINT OF HACIENDA HOMES, INC.
FILED BY:**

***TENTATIVE RULING**

EBMUD's demurrer to Hacienda Homes, Inc.'s First Amended Cross-Complaint is sustained with leave to amend.

The operative cross-complaint fails to state facts sufficient to constitute a viable cause of action against EBMUD.

Because Hacienda has requested leave to amend, leave is granted to permit Hacienda to attempt to plead a timely and otherwise cognizable cause of action against EBMUD, if it can do so.

EBMUD shall prepare the order and serve and file notice of its entry.

Hacienda shall file and serve any amended cross-complaint within 20 days after service of notice of entry of order.